

Commercial Broadcast Receiver Licensing (Dealers) Rules, 1965

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Commercial Broadcast Receiver Licensing (Dealers) Rules, 1965

UNION OF INDIA

India

Commercial Broadcast Receiver Licensing (Dealers) Rules, 1965

Rule COMMERCIAL-BROADCAST-RECEIVER-LICENSING-DEALERS-RULES-1965 of 1965

Published on 1 November 1965

Commenced on 1 November 1965

[This is the version of this document from 1 November 1965.]

[Note: The original publication document is not available and this content could not be verified.]

Commercial Broadcast Receiver Licensing (Dealers) Rules, 1965

Published vide Notification Gazette of India, 1965, Part 2, Section (i), page 1377 (we.e.f. 1st November, 1965).

1718.

G.S.R. 1320, dated the 28th August. - In exercise of the powers conferred by section 7 of the Indian Telegraph Act, 1885 (

13 of 1885

) and section 10 of the Indian Wireless Telegraphy Act, 1933 (

17 of 1933

), the Central Government hereby makes the following rules, namely :

1.

Short title and commencement.

(1)
These rules may be called the Commercial Broadcast Receiver Licensing (Dealers) Rules, 1965.

(2)
They shall come into force on the 1st day of November, 1965.

2.
Definitions.

- In these rules, unless the context otherwise requires-

(a)
"complete wireless set" means any apparatus which is capable of being used for transmitting or receiving wireless communication, either by itself or with the addition of electric power, aerials, valves, telephones, loudspeakers and similar devices and includes any apparatus which is temporarily incapable of being so used by reason of a defect in its component parts or in the electric wiring;

(b)
"Dealer" means any person who deals in or manufactures for gain wireless telegraphy apparatus as defined in the Indian Wireless Telegraphy Act, 1933 (
17 of 1933

);
(c)
"Licensing Authority" means the telegraph authority as defined in the Indian Telegraph Act, 1885 (
13 of 1885
) , namely, the Director General of Posts and Telegraphs.

3.
Licensing Requirements.

(1)
A dealer in complete wireless sets whether such dealer is a wholesaler or retailer or partly wholesaler and partly a retailer or a dealer who undertakes repairs or servicing of such complete wireless sets at his own business premises shall, subject to any procedure which may from time to time be laid down in this behalf by the Licensing Authority, be required to take a licence under the Indian Wireless Telegraphy (Possession) Rules, 1965, made under Section 10 of the Indian Wireless Telegraphy Act, 1933 (
17 of 1933
) , and a Commercial Broadcast Receiver Licence under the Licensing of Wireless Receiving Apparatus Rules, 1965, made under section 7 of the Indian Telegraph Act, 1885 (
13 of 1885
) .

(2)
The provisions of sub-rule (1) shall be in addition to the other rules made under the Indian Telegraph Act, 1885, or under the Indian Wireless Telegraphy Act, 1933.

4.
Offence and penalty.

- Any breach of these rules other than a breach, which is an offence punishable under Section 6 [of the Indian Wireless Telegraphy Act, 1933 (
17 of 1933
)]

[Substituted by G.S.R. 773, dated 15.5.1967]
shall be punishable with fine, which may extend up to one hundred rupees.

5.
Repeal.

(1)
As from the commencement of these rules, the Commercial Broadcast Receiver Licences for Dealers Rules, 1954, shall cease to have effect.

(2)

Notwithstanding such cesser of operation, anything done or any action taken under the said Commercial Broadcast Receiver Licences for Dealers Rules, 1954, shall be deemed to have been done or taken under the corresponding provisions of these rules.

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